

Calendar Line 4

Case Name: *Marmolejo v. Significant Cleaning Services, LLC*
Case No.: 22CV397991

This is a putative class and representative action arising from alleged wage and hour violations. In the first amended complaint against defendant Significant Cleaning Services, LLC (“Defendant”), plaintiff Jesus Marmolejo alleges failures to pay wages, provide meal and rest breaks, reimburse expenses, provide accurate wage statements, and pay final wages, as well as related penalties under the Private Attorneys General Act (“PAGA”).

Plaintiff moves for preliminary approval of the settlement reached by the parties. Defendant opposes the motion. As discussed below, the Court GRANTS the motion for preliminary approval, VACATES the Case Management Conference set for 2:30 p.m. on July 1, 2026, and sets a final approval hearing for January 13, 2027, at 1:30 p.m. in Department 5.

I. Background

Plaintiff, a former hourly non-exempt custodial employee of Defendant, brought a representative action under PAGA (No. 21CV391431) and a separate putative class action (No. 22CV397991). Consistent with the parties’ settlement, Plaintiff filed a first amended complaint on December 15, 2025, adding the PAGA claim to the class action, and the separate PAGA action is to be dismissed without prejudice.

The parties mediated before Mark LeHocky on March 20, 2023, and reached a settlement. They memorialized the settlement in a five-page Memorandum of Understanding executed on August 22, 2023. (See Declaration of Alan Wilcox (“Wilcox Decl.”), Ex. 1, (the “MOU”).) The MOU provides for a non-reversionary gross settlement of \$625,000, payable by Defendant in three installments beginning ten days after the “Effective Date,” which the MOU defines as the date of final approval (or, if an appeal is taken, after the appeal concludes). (MOU, ¶¶ 5–7.)

The parties did not execute the contemplated long-form agreement. (See Motion, pp. 2:22–3:24.) Defendant later advised that it could not fund the settlement, and the parties exchanged financial records and engaged a second forensic accountant in 2025. The parties